Competition and Consumer (Scams Prevention Framework) Rules 2026

I, Daniel Mulino, Assistant Treasurer and Minister for Financial Services, make the following rules.

Dated 31 August 2026

Dr Daniel Mulino
Assistant Treasurer
Minister for Financial Services

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Part 1—Preliminary

1-1 Name

This instrument is the *Competition and Consumer (Scams Prevention Framework) Rules 2026*.

1-2 Commencement

(1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	**Column 2**	**Column 3**
Provisions	**Commencement**	**Date/Details**
1. The whole of this instrument	The later of: (a) immediately after this instrument is registered; and (b) 1 September 2026.	

Note: This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.

(2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

1-3 Authority

This instrument is made under the *Competition and Consumer Act 2010*.

Note: Section 58GE of the *Competition and Consumer Act 2010* provides that the Minister may, by legislative instrument, make rules required or permitted by Part IVF of the Act to be prescribed by rules, or necessary or convenient to be prescribed for carrying out or giving effect to that Part.

1-4 Definitions

Note: Expressions have the same meaning in this instrument as in the *Competition and Consumer Act 2010* as in force from time to time—see paragraph 13(1)(b) of the *Legislation Act 2003*.

accounting standards means:

(a) accounting standards within the meaning given by the *Corporations Act 2001*; and

(b) international accounting standards made or adopted by the International Accounting Standards Board; and

(c) accounting standards made by a responsible body of a foreign country that correspond to, and are equivalent to, standards covered by paragraph (a) or (b).

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active Australian user test—see section 1-5.

control, of an entity by another entity, means control of the entity within the meaning of the accounting standards.

controlled entity: an entity is a controlled entity of another entity if the other entity controls the entity.

covered banking service has the meaning given by the *Competition and Consumer (Scams Prevention Framework—Regulated Sectors) Designation 2026*.

Note: A service is a 'covered banking service' if it meets the requirements of the designation instrument. Covered banking services are designated as a regulated sector of the Australian economy (see subsection 11(1) of the designation instrument).

covered digital platform service has the meaning given by the *Competition and Consumer (Scams Prevention Framework—Regulated Sectors) Designation 2026*.

Note: A service is a 'covered digital platform service' if it meets the requirements of the designation instrument. Covered digital platform services are designated as a regulated sector of the Australian economy (see subsection 15(1) of the designation instrument).

covered telecommunications service has the meaning given by the *Competition and Consumer (Scams Prevention Framework—Regulated Sectors) Designation 2026*.

Note: A service is a 'covered telecommunications service' if it meets the requirements of the designation instrument. Covered telecommunications services are designated as a regulated sector of the Australian economy (see subsection 13(1) of the designation instrument).

financial reporting period, for an entity, has the meaning determined in accordance with accounting standards that are applicable to the entity.

provider of purchased payment facilities means an ADI (within the meaning of the *Banking Act 1959*) that:

(a) engages in the provision of one or more purchased payment facilities (within the meaning of the *Payment Systems (Regulation) Act 1998*), in relation to which at least one of those facilities the Australian Prudential Regulation Authority has determined as mentioned in section 6 of the *Banking Regulation 2016*; and

(b) does *not* otherwise carry on banking business within the meaning of section 5 of the *Banking Act 1959*.

revenue test—see section 1-6.

small business operator has the same meaning it has in section 58AH of the Act.

the Act means the *Competition and Consumer Act 2010*.

voice call has the meaning given by the *Competition and Consumer (Scams Prevention Framework—Regulated Sectors) Designation 2026*.

voice call service has the meaning given by the *Competition and Consumer (Scams Prevention Framework—Regulated Sectors) Designation 2026*.

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1-5 Meaning of active Australian user test

(1) A service satisfies the active Australian user test on 1 January each year (the ***test time***) and each day of that calendar year if, for the most recently ended 12-month financial reporting period (the ***test year***), the average monthly active Australian users of the service is 200,000 or more.

Note: A service does *not* satisfy the active user test at any time during a calendar year if it does *not* satisfy that test on 1 January of that calendar year.

(2) For the purposes of subsection (1), a person is an active Australian user of a service for a month in the test year if the person accesses the service from within Australia at least once during the month.

1-6 Meaning of revenue test

(1) An entity satisfies the revenue test on 1 January each year (the ***test time***) and each day of that calendar year if either of the following apply:

(a) the entity meets the threshold in subsection (2) for the entity's most recently ended 12-month financial reporting period ending immediately before the test time;

(b) the entity meets the threshold in subsection (2) in at least 2 of the last 3 financial reporting periods ending immediately before the test time.

Note: An entity does *not* satisfy the revenue test at any time during a calendar year if it does *not* satisfy that test on 1 January of that calendar year.

(2) For the purposes of subsection (1), an entity meets the threshold if the sum of the following is $1 billion or more:

(a) the gross revenue, determined in accordance with accounting standards, of the entity;

(b) the gross revenue, determined in accordance with accounting standards, of each controlled entity of the entity mentioned in paragraph (a);

(c) the gross revenue, determined in accordance with accounting standards, of each entity that controls the entity mentioned in paragraph (a);

(d) the gross revenue, determined in accordance with accounting standards, of each controlled entity of an entity mentioned in paragraph (c).

(3) For the purposes of subsection (2), do *not* include the gross revenue of any entity mentioned in subsection (2) if the entity's revenue is already included in the revenue of another entity mentioned in a paragraph of that subsection.

Note: When an entity controls one or more entities, the first entity is generally required to prepare consolidated financial statements. To avoid double counting, the gross revenue of a controlled entity should *not* be included in the calculation if the parent entity's consolidated revenue is also being included.

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Part 3—Sector-specific provisions for the Scams Prevention Framework

Division 1—Provisions relating to key Scams Prevention Framework concepts

3-1 Banking designation—complete exceptions

(1) For the purposes of paragraph 58AD(4)(a) of the Act, a person is *not* a regulated entity for the regulated sector that is covered banking services if the person is:

(a) a provider of purchased payment facilities; or

(b) a foreign ADI (within the meaning of the *Banking Act 1959*).

(2) For the purposes of paragraph 58AD(4)(b) of the Act, a service is *not* a regulated service of a person for the regulated sector that is covered banking services if the service:

(a) is *not* provided directly to a natural person or small business operator under a contract, arrangement or understanding; and

(b) does *not* involve the transfer of funds from a bank account or facility held by a natural person or small business operator (the ***payer***) to another bank account or facility held by either the payer or someone else, where the service is provided indirectly by the entity with which the payer holds the bank account or facility; and

(c) does *not* involve the receiving of funds into a bank account or facility held by a natural person or small business operator (the ***payee***) from another bank account or facility held by either the payee or someone else, where the service is provided indirectly by the entity with which the payee holds the bank account or facility.

3-5 Telecommunications designation—complete exception

For the purposes of paragraph 58AD(4)(b) of the Act, a voice call service is *not* a regulated service of a person for the regulated sector that is covered telecommunications services if:

(a) use of the service is limited to voice calls between a limited group of users (including the person) and persons acting for, or on behalf of, the limited group of users (collectively, ***private line users***); and

(b) a voice call enabled by the service may only be made or received through the operation of a handset or other similar device that is designed to operate to make and receive voice calls between private line users and other private line users only and is *not* capable of being used to make or receive other voice calls; and

(c) the service is ancillary or incidental to another service (other than a covered telecommunications service) provided by the person to the limited group of users.

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3-10 Digital platforms designation—complete exceptions

(1) For the purposes of paragraph 58AD(4)(a) of the Act, a person is *not* a regulated entity for the regulated sector that is covered digital platform services at a particular time if the person is an entity that does *not* meet the revenue test at that time.

(2) For the purposes of paragraph 58AD(4)(b) of the Act, a service is *not* a regulated service of a person for the regulated sector that is covered digital platform services at a particular time if the service does *not* meet the active Australian user test at that time.

Note 1: Generally, an entity that provides a covered digital platform service is a regulated entity for the digital platforms sector, and the covered digital platform service is a regulated service for the entity.

Note 2: The combined effect of subsections (1) and (2) is that an entity will only be a regulated entity at a particular time if, at that time, the entity meets the revenue test, and that a regulated entity will only be a regulated entity of a regulated service if the service meets the active Australian user test. That is, an entity will *not* be a regulated entity if its revenue is below the threshold in the revenue test. Likewise, a business or service will *not* be a regulated service if the number of users for that service is below the active Australian user test.

(3) This section does *not* apply to a person or a service of a person if the person that provides the service does *not* give to the ACCC, upon notice in writing by the ACCC and within a reasonable time specified by the ACCC in the notice, information or copies of documents specified in the notice that would reasonably assist the ACCC to determine whether, at a particular time:

(a) the person is an entity that meets the revenue test; or

(b) the service of the person meets the active Australian user test.

Note: The effect of this subsection is that the exceptions in subsections (1) and (2) will *not* apply in circumstances where information and documents are *not* provided to the ACCC in accordance with this subsection.

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Part 7—Miscellaneous

7-1 Translation of amounts into Australian currency

(1) For the purposes of this instrument, an amount (including an amount which is an element in the calculation of another amount) expressed in a currency other than Australian currency (***foreign currency***) is to be translated into Australian currency.

Example: Where the accounting records and financial reports of an entity are expressed in a foreign currency, the gross revenue of the entity will need to be translated into Australian currency before the tests in this instrument are applied.

Translation in accordance with accounting standards

(2) Where:

(a) an amount is derived from a financial report prepared by an entity; and

(b) the report is prepared in accordance with accounting standards; and

(c) the report has been audited in accordance with the *Corporations Act 2001* (or a corresponding and equivalent law of a foreign country); and

(d) the entity, or another entity, wishes to translate an amount into Australian currency using the exchange rate or rates used in that financial report;

the entity mentioned in paragraph (d) must translate all amounts into Australian currency using the exchange rates that were used in that financial report and as used in that report.

Translation using published average exchange rates

(3) Unless subsection (2) applies, an entity must translate all amounts in foreign currency into Australian currency using:

(a) an average exchange rate for the period most closely corresponding to the period to which the amount relates; and

(b) either:

(i) the exchange rates published by the Reserve Bank of Australia; or

(ii) if the amount is in a currency for which the Reserve Bank of Australia does *not* publish an exchange rate—a publicly and commercially available market exchange rate.

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